

These General Terms and Conditions apply to all activities of **Clience**. Clience is registered with the Dutch Chamber of Commerce (Kamer van Koophandel) under number **74907085** in **Roermond, The Netherlands**.

Article 1 – Definitions

In these terms the following definitions apply:

Client

The natural person or legal entity that commissions the Contractor to deliver products or perform services.

Contractor

Clience, the party that accepts the assignment or issues a quotation or proposal prior to an assignment.

Supplier / Subcontractor

Production companies and other third parties involved in reproducing or publishing designs created or prepared by Clience as part of an assignment.

Data carriers

Magnetic, optical or digital storage media used for storing, editing, transmitting or reproducing text, images or other data.

Article 2 – Applicability

These terms and conditions apply to all offers, quotations, agreements and services between the Contractor and the Client.

Any deviations from these terms are only valid if agreed upon **in writing** by both parties.

Article 3 – Quotations and Pricing

The mere issuance of a quotation, estimate or price indication does not obligate the Client to enter into an agreement with the Contractor.

All verbal and written quotations and offers provided by the Contractor are **non-binding** unless explicitly stated otherwise.

Prices may be adjusted due to unforeseen changes in the scope of work.

All prices are **exclusive of VAT and any other government-imposed taxes**.

Quotations remain valid for **28 days** from the date stated on the proposal unless otherwise indicated.

Article 4 – Written Confirmation

Quotations issued by the Contractor must be confirmed **in writing** by the Client before work will commence.

Verbal agreements only become binding after written confirmation by Clience.

Article 5 – Multiple Contractors

If the Client intends to assign the same assignment to multiple contractors simultaneously, the Client must inform all parties involved.

Upon request, the Client must disclose which other parties have been approached or contracted for the same assignment.

Article 6 – Provision of Information

The Client must provide all information, materials and data required for the proper execution of the assignment in a timely manner.

The Client is responsible for ensuring that all provided materials are **complete, accurate and usable**.

Article 7 – Use of External Suppliers

Assignments relating to the production, reproduction or publication of designs may be executed by third parties on behalf of the Client and at the Client's expense and risk.

Clience may act as an intermediary if requested by the Client. Additional compensation may be agreed for this service.

Article 8 – Approval Before Publication

Before reproduction or publication takes place, both parties must have the opportunity to review and approve the final proof, prototype or revision of the design.

Article 9 – Delivery Time

Any delivery time provided by the Contractor is **indicative**, unless explicitly stated otherwise in writing.

The Contractor can only be considered in default after the Client has issued a **formal written notice of default**.

Article 10 – Intellectual Property Rights

All copyrights, design rights and other intellectual property rights relating to preliminary and final designs remain with **Clience**, unless otherwise agreed in writing.

No transfer of intellectual property rights occurs unless explicitly agreed in writing.

Article 11 – Authorship

The Contractor guarantees that the delivered work has been created by or on behalf of Clience and that Clience qualifies as the legal author of the work within the meaning of Dutch copyright law.

Article 12 – Investigation of Third-Party Rights

Unless explicitly agreed otherwise, the assignment does not include investigating the existence of trademark rights, design rights, patents, copyrights or portrait rights belonging to third parties.

Article 13 – Attribution

The Contractor has the right to credit their name on the design or publication.

The Client may not publish or reproduce the work without proper attribution unless permission has been granted.

Article 14 – Ownership of Materials

All materials provided by Clience, including sketches, concepts, working files, prototypes, design drafts and related materials remain the property of Clience unless otherwise agreed in writing.

Clience may keep copies of materials for archival purposes.

Article 15 – License for Use

Once the Client has fulfilled all contractual obligations, the Client receives a **license to use the design** for the purpose agreed upon in the assignment.

If no specific purpose has been defined, the license applies to the **first use and first publication**.

Article 16 – Extended Use

If the Client wishes to use the design beyond the agreed scope, a **separate agreement** must be concluded.

Article 17 – Modifications

The Client may not modify the design without written permission from Clience.

If modifications are requested, Clience must first be given the opportunity to implement them against the standard hourly rate.

Article 18 – Self Promotion

Clience reserves the right to use the work and/or concept for **portfolio, promotional or marketing purposes**, unless otherwise agreed.

Article 19 – Proof Material

If the design is reproduced in series, the Client must provide the Contractor with **at least 15 copies** of the produced work for documentation purposes.

Article 20 – Fees and Additional Costs

In addition to the agreed fee, the Client must reimburse any additional costs incurred during the execution of the assignment that fall outside normal overhead expenses.

Article 21 – Additional Work

If additional work is required due to incomplete information, changes in the assignment or incorrect materials provided by the Client, additional fees may apply.

Article 22 – Usage Compensation

The agreed fee includes compensation for the license to use the design within the scope defined in the assignment.

Article 23 – Payment Terms

Unless otherwise agreed, invoices must be paid **within 14 days** of the invoice date.

If payment is not received within this period, the Client is automatically in default and **statutory interest plus 2%** may be charged.

All collection costs and legal expenses incurred due to late payment are the responsibility of the Client.

Article 24 – Periodic Invoicing

The Contractor has the right to invoice work completed up to that moment during the execution of the assignment.

Article 25 – Suspension

If the Client fails to meet payment obligations, all rights granted to the Client under the agreement will be **suspended until payment has been received**.

Article 26 – Cancellation

If the Client cancels the assignment after confirmation, the Client must compensate the Contractor for all work performed and costs incurred up to that moment.

Article 27 – Ongoing Agreements

If the Contractor performs recurring work for the Client, the agreement may remain valid indefinitely unless terminated in writing with reasonable notice.

Article 28 – Termination

If circumstances beyond the Contractor's control prevent the continuation of the assignment, the Contractor may terminate the assignment without liability.

The Contractor remains entitled to compensation for work already performed.

Article 29 – Liability

The Contractor cannot be held liable for errors in the final product if the Client has reviewed and approved the work.

The Contractor is not liable for materials supplied by the Client or for errors made by suppliers or subcontractors.

Article 30 – Limitation of Liability

The liability of the Contractor shall always be limited to **the amount of the agreed fee for the assignment**.

Article 31 – Backup Responsibility

The Client is responsible for maintaining backup copies of materials provided to the Contractor.

Article 32 – Third-Party Rights

The Client indemnifies the Contractor against claims relating to intellectual property rights of materials supplied by the Client.

Article 33 – Delivery and Retention of Title

All delivered materials remain the property of the Contractor until full payment has been received.

Transportation or transmission of materials takes place **at the Client's risk**.

Article 34 – Other Terms

Terms and conditions provided by the Client do not apply unless explicitly accepted in writing by Clience.

Article 35 – Governing Law

All agreements between the Contractor and the Client are governed by the laws of **The Netherlands**.

Any disputes shall be submitted to the **competent court in the district where Clience is established**.

Article 36 – Amendments

Clience reserves the right to modify these terms and conditions.

Updated versions will be provided when a new assignment is initiated.